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Public Officer Ethics Act

The Judicial Service Commission Procedures for the Administration of Part IV of the Act

Legal Notice 121 of 2003

Legislation as at 31 December 2022

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The Judicial Service Commission Procedures for the Administration of Part IV of the Act (Legal Notice 121 of 2003)

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PUBLIC OFFICER ETHICS ACT

THE JUDICIAL SERVICE COMMISSION PROCEDURES FOR THE ADMINISTRATION OF PART IV OF THE ACT

LEGAL NOTICE 121 OF 2003

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1. Citation

These procedures may be cited as the Judicial Service Commission Procedures for the Administration of Part IV of the Act.

2. Interpretation

In these procedures, unless the context otherwise requires—

"administration officer" means the Secretary of the Commission;

"Commission" means the Judicial Service Commission.

3. Scope of procedures

These procedures are for the administration of Part IV of the Act with respect to the public officers for whom the Commission is the responsible Commission under the Act.

4. Administration officer

The administration officer shall be responsible for the administration of Part IV of the Act by the Commission.

5. To whom declarations submitted

Declarations to be submitted to the Commission under Part IV of the Act shall be submitted to the administration officer.

6. Who may make requests for clarifications

Requests for clarifications under section 28 of the Act shall be made, on behalf of the Commission, by the administration officer or by staff of the Commission authorized in writing by him for that purpose.

7. Review of declarations, etc.

(1) The administration officer, or staff of the Commission authorized by him for the purpose, shall review each declaration to ascertain if, in the opinion of the administration officer or staff, any of the following conditions are satisfied—

(a) on the face of the declaration, or in light of any other information the Commission may have, there is reason to suspect the declaration may be false or incomplete;

(b) the assets of the person who submitted the declaration are disproportionate to his income; or

(c) the income, assets or liabilities of the person who submitted the declaration raise concerns of impropriety or conflict of interest.

(2) If it is ascertained that any of the conditions in subparagraph (1) are satisfied, the person who submitted the declaration shall be given an opportunity to give an explanation.

(3) If, after considering any explanation the person who submitted the declaration may give, the administration officer is of the opinion that any of the conditions in subparagraph (1) are still satisfied, the administration officer shall bring the matter to the attention of the Commission.

(4) The Commission may, with respect to a matter brought to its attention under paragraph (3), take such action as it considers appropriate including, without limiting the generality of the foregoing, notifying the Kenya Anti-Corruption Commission and giving the Kenya Anti-Corruption Commission particulars of the condition that is satisfied and a copy of the declaration.

8. Authorization of staff under section 30(2)

(1) The Commission or the administration officer may authorize staff of the Commission for the purposes of section 30(2) of the Act.

(2) An authorization under paragraph (1) shall be in writing.

9. Condition for certain disclosures to police, *etc.*

Except as provided under paragraph 7(4) information shall not be disclosed, under section 30(2) of the Act, to the police or any other law enforcement agency unless a written request is provided.

10. Condition for disclosures to representatives

Information shall not be disclosed, under section 30(2) of the Act, to a representative of the person who provided the information unless the representative provides copies of documents that establish the representative's authority to receive the information.

11. Administration officer to report non-compliance

The administration officer shall ensure that failures by public officers to comply with the requirements of Part IV of the Act are brought to the attention of the Commission.